

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S NOTICE OF DISREGARDED FILINGS AND
PRESERVATION OF APPELLATE POSTURE**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully files this Notice to place on the record the procedural context and purpose of ten (10) filings made between June 27 and July 11, 2025, including a red-lined response to Plaintiffs' Proposed Final Judgment filed on July 12, 2025, at 4:55 PM.

1. These filings were submitted in good faith to identify legal and factual misrepresentations, correct material omissions, and preserve constitutional, statutory, and procedural rights in anticipation of final judgment and any ensuing appellate actions.

2. Defendant has now submitted one hundred sixty-four (164) pleadings, motions, notices, and declarations since the inception of this case. Many of these—including the ten listed below—raise serious issues of fact, jurisdiction, board authorization, falsified evidence, and fraud on both the Court and federal authorities.

3. Defendant remains mindful that the Court is not required to agree with his arguments. But where those arguments raise constitutional rights, jurisdictional defects, or conflicts of law, their silence in the final judgment risks procedural infirmity and denial of meaningful appellate review.

4. The ten recent filings of particular relevance include:

(1) 7/12/2025 – *Red-Lined Response to Plaintiffs’ Proposed Final Judgment*

(2) 7/11/2025 – *Defendant Request for Emergency Consideration (Part II)*

(3) 7/10/2025 – *Defendant Request for Emergency Consideration*

(4) 7/9/2025 – *Defendant Notice of Filing Section-by-Section Rebuttal to Proposed Final Judgment and Correction of Material Misrepresentations*

(5) 7/2/2025 – *Defendant Notice Regarding Response to Proposed*

Final Judgment and Reservation of Appellate Rights

(6) 7/1/2025 – *Supplemental Notice of Judicial Conflict and Institutional Incoherence*

(7) 7/1/2025 – *Defendant Notice of Systemic Non-Engagement and Bifurcated Court Behavior*

(8) 6/30/2025 – *Supplemental Judicial Notice of Procedural Entrenchment and Appearance of Bias in Support of Renewed Motion to Dismiss*

(9) 6/30/2025 – *Notice of Filing Renewed Motion to Dismiss for Fraud on the Court, Lack of Board Authorization, Jurisdictional Defects, and Statute of Limitations Bar*

(10) 6/27/2025 – *Notice of Objection and Constitutional Challenge to Summary Denial of Defendant's Emergency Motion to Stay Proceedings*

5. Whether a tree makes a sound when it falls in the forest is not a matter of debate: it does—unless the surrounding atmosphere is absent. Even in that case, a tremor will propagate through the soil.
6. The true question is not whether the tree fell, but whether anyone chose to hear it. An observer who is too far, inattentive, or who has deliberately closed her ears may pretend the tree never fell. But it did. And so too here, the filings were made. The record exists—

even if not acknowledged. Defendant respectfully submits that the Court's failure to address these critical issues in its judgment, without acknowledging the underlying facts and motions, risks undermining due process and the integrity of the appellate review process.

7. This Notice is not submitted in contempt but in conscientious preservation of the legal record. Silence in the judgment does not equate to the nonexistence of fact. It equates only to the exclusion of fact. Defendant explicitly preserves all objections, factual claims, and legal arguments, which have not been addressed or adjudicated, and reserves the right to raise these issues in the appellate forum.

Respectfully submitted this 14th day of July, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski